These guidelines set forth the requirements for interim authorization and the procedures which EPA will follow in acting on State applications for interim authorization. They also provide that EPA will grant interim authorization in two major phases (Phase I and Phase II), corresponding to the two major phases of the Federal program.

The State of Rhode Island submitted a draft application for Phase I interim authorization on August 22, 1980. In its comments on the draft application, EPA identified several issues in the State's program description, memorandum of agreement, and Attorney General's statement which required further clarification or amendment. Most of these issues were addressed in the final application submitted to EPA on December 17, 1980, and the application was determined to be complete on that date.

In accordance with EPA guidelines, EPA provided public notice of receipt of the State's application and opportunity for comment on it. [46 FR 2120 (January 8, 1981)]. A hearing was held on the application on February 12, 1981, at the Cannon Building Auditorium in Providence, Rhode Island. All timely comments, whether presented at the hearing or in writing, were considered in reaching a decision on Rhode Island's application.

II. Major Issues

None of the issues raised by commenters on Rhode Island's application were major. A discussion of these issues and EPA's response thereto is contained in EPA's responsiveness summary to comments received on the Rhode Island application. The responsiveness summary is available at the EPA Region I Office in Boston (see "For Further Information Contact", above) and at EPA Headquarters in Washington, D.C.

III. Decision

EPA has reviewed the State of Rhode Island's complete application for Phase I interim authorization and determined that the state program is "substantially equivalent" to the Phase I Federal program as defined in 40 CFR Part 123. In accordance with Section 3006(c) of RCRA, the State of Rhode Island is hereby granted interim authorization to operate a hazardous waste program in lieu of Phase I of the Federal hazardous waste program. The practical effect of this decision is that generators, transporters, and owners and operators of hazardous waste management facilities in Rhode Island will be subject to the State of Rhode Island hazardous waste management program in lieu of the Phase I Federal hazardous waste management program (40 CFR Parts 260–263 and 265) and will not again be subject to the Phase I Federal program unless (1) the state fails to obtain final authorization by the deadline specified in 3006(c) of RCRA and implementing regulations or (2) authorization is withdrawn for cause by EPA.

IV. Compliance With Executive Order 12291

Under Executive Order 12291, EPA must prepare a Regulatory Impact Analysis on "major regulations." A "major regulation" is defined as any regulation that is likely to result in:

(1) An annual effect on the economy of $100 million or more;

(2) A major increase in costs or prices for consumers, individual industries, Federal, State, or local government agencies, or geographic regions; or

(3) Significant adverse effects on competition, employment, investment, productivity, innovation, or on the ability of United States-based enterprises to compete with foreign-based enterprises in domestic or export markets.

EPA's decision to approve Rhode Island's Phase I hazardous waste program is not a major regulation because its effect is to suspend the applicability of certain Federal regulations in the State of Rhode Island. In the absence of this decision, persons handling hazardous waste in Rhode Island would have to comply with Parts 260–263 and 265 of Title 40 of the Code of Federal Regulations in addition to all Rhode Island hazardous waste management regulations. For this reason it is virtually inconceivable that this regulation would result in the significant impacts that characterize a "major regulation."

This regulation was submitted to the Office of Management and Budget for review as required by Executive Order 12291.

V. Authority

This notice is issued under the authority of Sections 2002(a), 3006, and 7004(b) of the Solid Waste Disposal Act, as amended by the Resource Conservation and Recovery Act of 1976, as amended, 42 U.S.C. §§ 6912(a), 6926, and 6974(b).

Dated: April 27, 1981.

Leslie A. Carothers,

Acting Regional Administrator.

[FR Doc. 81-16141 Filed 5-28-81; 8:45 am]

BILLING CODE 6560-38-M

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

43 CFR Public Land Order 5926

[CA-7804]

California; Revocation of Executive Order No. 9101

AGENCY: Bureau of Land Management, Interior.

ACTION: Public land order.

SUMMARY: This order revokes an Executive Order which withdrew lands in aid of legislation affecting approximately 163.34 acres of which 160 acres are privately owned. This action will restore 3.64 acres to operation of the public land laws generally, and to nonmetalliferous mineral location under the mining laws.

EFFECTIVE DATE: June 23, 1981.

FOR FURTHER INFORMATION CONTACT: Celia Anderson, California State Office 916–484–4431.

By virtue of the authority vested in the Secretary of the Interior by Section 204 of the Federal Land Policy and Management Act of 1976, 90 Stat. 2751; 43 U.S.C. 1714, it is ordered as follows:

1. Executive Order No. 9101 of March 16, 1942, which withdrew the following described lands in aid of legislation, is hereby revoked in its entirety:

San Bernardino Meridian

T. 6 S., R. 22 E.,
Sec. 31, NE¼, that part of the NE¼SE¼ lying north of the north line of State Highway Route No. 64.

The area described aggregates approximately 163.64 acres in Riverside County.

2. Of the lands described in paragraph 1, the NE¼ (160 acres) is privately owned and not subject to disposition under the public land and mineral laws.

3. At 10 a.m. on June 23, 1981, the public land shall be open to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on June 23, 1981, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

4. At 10 a.m. on June 23, 1981, the land will be open to nonmetalliferous mineral location under the United States mining laws. The land has been open to applications and offers under the mineral leasing laws and to metalliferous mineral location under the United States mining laws.

Inquiries concerning the land should be addressed to the State Director, Bureau of Land Management, Room E-2841, Federal Office Building, 2800 Cottage Way, Sacramento, California 95825.

Garrey E. Carruthers,

Assistant Secretary of the Interior.

May 18, 1981.

[FR Doc. 81-16023 Filed 5-28-81; 8:45 am]

BILLING CODE 4310-84-M

43 CFR Public Land Order 5927

[CA-3394]

California; Partial Revocation of Public Land Order No. 3342

AGENCY: Bureau of Land Management, Interior.

ACTION: Public land order.

SUMMARY: This order will partially revoke a Public Land Order which withdrew lands in the Eldorado National Forest for use as administrative sites and campgrounds. The lands will be open to such forms of disposition as may by law be made of national forest lands.

EFFECTIVE DATE: June 23, 1981.

FOR FURTHER INFORMATION CONTACT: Marie M. Getsman, California State Office 916-484-4431.

By virtue of the authority contained in Section 204 of the Federal Land Policy and Management Act of 1976, 90 Stat. 2751; 43 U.S.C. 1714, it is ordered as follows: 1. Public Land Order No. 3342 of March 2, 1964, withdrawing certain national forest lands from prospecting, location, entry and purchase under the mining laws of the United States for the Department of Agriculture, Forest Service, is hereby revoked insofar as it affects the following described lands:

Eldorado National Forest

Mount Diablo Meridian

Administrative Sites

Haypress Meadows

T. 12 N., R. 17 E.,
Sec. 28, SW¼SE¼.

Stony Ridge

T. 13 N., R. 17 E.,
Sec. 18, SE¼NE¼.

Campground Areas

Crag Lake

T. 13 N., R. 16 E.,
Sec. 12, Lot 5.

Velma Lake

T. 13 N., R. 17 E.,
Sec. 31, Lot 9.

Firs Camp

T. 11 N., R. 18 E.,
Sec. 6, S½ of Lot 11.

Alpine

T. 11 N., R. 18 E.,
Sec. 17, S½NW¼SW¼, and N½SW¼SW¼.

The areas described aggregate approximately 195.88 acres in El Dorado County.

2. At 10 a.m., on June 23, 1981, the lands shall be open to such forms of disposition as may by law be made of national forest lands.

Garrey E. Carruthers,

Assistant Secretary of the Interior.

May 18, 1981.

[FR Doc. 81-16024 Filed 5-28-81; 8:45 am]

BILLING CODE 4310-84-M

43 CFR Public Land Order 5930

[CA 3589]

California; Revocation of Reclamation Project Withdrawal

AGENCY: Bureau of Land Management, Interior.

ACTION: Public Land Order.

SUMMARY: This order will revoke a Departmental Order which withdrew 4,132.15 acres of land for the Iron Canyon Project in California. This action will restore 3,534.75 acres of land to the operation of the public land laws generally, including the mining laws. In addition, 279.11 acres are being restored to the mining laws only as they remain segregated from the public land laws for Federal Energy Regulatory Commission Project 2041. Of the balance, 18.85 acres remain withdrawn from the operation of the public land laws and the mining laws by Public Land Order No. 2719 of July 6, 1962, for recreation purposes under the administrative jurisdiction of the Bureau of Land Management and 299.44 acres are in private ownership and are not affected by this action.

EFFECTIVE DATE: June 23, 1981.

FOR FURTHER INFORMATION CONTACT: Marie M. Getsman, California State Office, 916-484-4431.

By virtue of the authority contained in Section 204 of the Federal Land Policy and Management Act of October 21, 1976, 90 Stat. 2751; 43 U.S.C. 1714, it is ordered as follows:

1. The Departmental Order of November 3, 1913, withdrawing lands for the Iron Canyon Project, is hereby revoked in its entirety.

Mount Diablo Meridian

T. 28 N., R. 2 W.,
Sec. 6, lots 1 to 7, SE¼NW¼, NE¼SW¼, NE¼SE¼, S½SE¼;
Sec. 8, NW¼SW¼, SE¼SW¼, SE¼SE¼;
Sec. 18, lots 1 and 3, NW¼NE¼, SE¼NE¼, SE¼NW¼, SE¼SW¼, NW¼SE¼, SE¼SE¼;
Sec. 20, NW¼NE¼, NW¼NW¼, SE¼NW¼, NW¼SW¼.
T. 29 N., R. 2 W.,
Sec. 18, S½SE¼;
Sec. 20, SE¼NE¼, N½NW¼, SE¼SW¼, SE¼;
Sec. 30, lots 3 and 4, SE¼NE¼, NE¼SW¼, N½SE¼.
T. 27 N., R. 3 W.,
Sec. 2, lot 1, NW¼NE¼, S½NE¼.
T. 28 N., R. 3 W.,
Sec. 10, N½NE¼, SW¼NE¼, and E½NW¼;
Sec. 12, lots 1 and 2, N½NE¼, SW¼NE¼, S½NW¼, SW¼, NW¼SE¼, S½SE¼;
Sec. 14, NE¼NE¼;
Sec. 16, lots 1, 2, and 3, and W½SE¼;
Sec. 20, SW¼NW¼;
Sec. 24, NW¼NE¼, SE¼NE¼, NW¼, NW¼SW¼, SE¼SW¼, SE¼;
Sec. 26, N½NE¼, SE¼NE¼;
Sec. 32, SW¼SW¼ and SE¼SE¼.
T. 29 N., R. 3 W.,
Sec. 10, lots 3 and 9 (Goat Island);
Sec. 12, S½NW¼;
Sec. 22, lot 7;
Sec. 24, NW¼NW¼, NE¼SE¼, S½SE¼;
Sec. 26, NW¼NE¼, SW¼, NW¼SE¼, S½SE¼.
T. 29 N., R. 4 W.,
Sec. 12, S½SW¼.

The area described aggregates 4,132.15 acres in Tehama and Shasta Counties.

2. At 10 a.m. on June 23, 1981, the following described lands shall be open to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on June 23, 1981, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

Mount Diablo Meridian

T. 28 N., R. 2 W.,
Sec. 6, lots 1 to 7, SE¼NW¼, NE¼SW¼, NE¼SE¼, S½SE¼;
Sec. 8, NW¼SW¼, SE¼SW¼, SE¼SE¼;
Sec. 18, lots 1 and 3, NW¼NE¼, SE¼NE¼, SE¼NW¼, SE¼SW¼, NW¼SE¼, SE¼SE¼;
Sec. 20, NW¼NE¼, NW¼NW¼, SE¼NW¼, NW¼SW¼.
T. 29 N., R. 2 W.,
Sec. 18, S½SE¼;
Sec. 20, SE¼NE¼, N½NW¼, SE¼SW¼, SE¼;
Sec. 30, lot 4, NE¼SW¼, N½SE¼.
T. 27 N., R. 3 W.,
Sec. 2, lot 1, NW¼NE¼, S½NE¼.
T. 28 N., R. 3 W.,
Sec. 10, E½NW¼ and NW¼NE¼;
Sec. 12, lots 1 and 2, N½NE¼, SW¼NE¼, S½NW¼, SW¼, NW¼SE¼, S½SE¼;
Sec. 14, NE¼NE¼;
Sec. 24, NW¼NE¼, SE¼NE¼, NW¼, NW¼SW¼, SE¼SW¼, SE¼;